

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR

HOUSE BILL NO. 3127

By: West (Kevin)

COMMITTEE SUBSTITUTE

An Act relating to medical marijuana; amending 63 O.S. 2021, Section 427.8, which relates to rights and restrictions related to medical marijuana use and possession; implementing discretionary zero-tolerance policy for all employers; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 63 O.S. 2021, Section 427.8, is amended to read as follows:

Section 427.8. A. The rights to possess the marijuana products set forth in Section 420 of ~~Title 63 of the Oklahoma Statutes~~ this title are cumulative and a duly licensed individual may possess at any one time the totality of the items listed therein and not be in violation of this act so long as the individual holds a valid patient license or caregiver license.

B. Municipal and county governing bodies may not enact medical marijuana guidelines which restrict or interfere with the rights of

1 a licensed patient or caregiver to possess, purchase, cultivate or
2 transport medical marijuana within the legal limits set forth in
3 this act or Section 420 et seq. of ~~Title 63 of the Oklahoma Statutes~~
4 this title or require patients or caregivers to obtain permits or
5 licenses in addition to the state-required licenses provided herein.

6 C. Nothing in this act or Section 420 et seq. of ~~Title 63 of~~
7 ~~the Oklahoma Statutes~~ this title shall prohibit a residential or
8 commercial property or business owner from prohibiting the
9 consumption of medical marijuana or medical marijuana product by
10 smoke or vaporization on the premises, within the structures of the
11 premises or within ten (10) feet of the entryway to the premises.
12 However, a medical marijuana patient shall not be denied the right
13 to consume or use other medical marijuana products which are
14 otherwise legal and do not involve the smoking or vaporization of
15 cannabis when lawfully recommended pursuant to Section 420 of ~~Title~~
16 ~~63 of the Oklahoma Statutes~~ this title.

17 D. A medical marijuana patient or caregiver licensee shall not
18 be denied eligibility in public assistance programs including, but
19 not limited to, Medicaid, Supplemental Nutrition Assistance Program
20 (SNAP), Women, Infants, and Children Nutrition Program (WIC),
21 Temporary Assistance for Needy Families (TANF) or other such public
22 assistance programs based solely on his or her status as a medical
23 marijuana patient or caregiver licensee, unless required by federal
24 law.

1 E. A medical marijuana patient or caregiver licensee shall not
2 be denied the right to own, purchase or possess a firearm,
3 ammunition, or firearm accessories based solely on his or her status
4 as a medical marijuana patient or caregiver licensee. No state or
5 local agency, municipal or county governing authority shall
6 restrict, revoke, suspend or otherwise infringe upon the right of a
7 person to own, purchase or possess a firearm, ammunition, or firearm
8 accessories or any related firearms license or certification based
9 solely on ~~their~~ his or her status as a medical marijuana patient or
10 caregiver licensee.

11 F. A medical marijuana patient or caregiver in actual
12 possession of a medical marijuana license shall not be subject to
13 arrest, prosecution or penalty in any manner or denied any right,
14 privilege or public assistance, under state law or municipal or
15 county ordinance or resolution including without limitation a civil
16 penalty or disciplinary action by a business, occupational or
17 professional licensing board or bureau, for the medical use of
18 marijuana in accordance with this act.

19 G. A government medical assistance program shall not be
20 required to reimburse a person for costs associated with the medical
21 use of marijuana unless federal law requires reimbursement.

22 H. Unless otherwise required by federal law or required to
23 obtain federal funding:
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1 1. No employer may refuse to hire, discipline, discharge or
2 otherwise penalize an applicant or employee solely on the basis of
3 such applicant's or employee's status as a medical marijuana
4 licensee; and

5 2. No employer may refuse to hire, discipline, discharge or
6 otherwise penalize an applicant or employee solely on the basis of a
7 positive test for marijuana components or metabolites, unless:

8 a. the applicant or employee is not in possession of a
9 valid medical marijuana license,

10 b. the licensee possesses, consumes or is under the
11 influence of medical marijuana or medical marijuana
12 product while at the place of employment or during the
13 fulfillment of employment obligations, or

14 c. such action is taken pursuant to a written drug and
15 alcohol testing policy adopted and enforced in
16 accordance with the Oklahoma Standards for Workplace
17 Drug and Alcohol Testing Act, Section 551 et seq. of
18 Title 40 of the Oklahoma Statutes.

19 3. Notwithstanding any other provision of this section, an
20 applicant or employee employed in a safety-sensitive position, as
21 defined in subsection K of this section shall be subject to a zero-
22 tolerance drug and alcohol standard. This requirement shall apply
23 regardless of any employer policy permitting impairment-based
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1 testing or alternative standards for positions not designated as
2 safety-sensitive.

3 I. Nothing in this act or Section 420 et seq. of ~~Title 63 of~~
4 ~~the Oklahoma Statutes~~ this title shall:

5 1. Require an employer to permit or accommodate the use,
6 possession, sale, transfer, or being under the influence of medical
7 marijuana on the property or premises of any place of employment or
8 ~~during hours of employment~~ workplace or while performing job duties;

9 2. Require an employer, a government medical assistance
10 program, private health insurer, ~~worker's~~ workers' compensation
11 carrier or self-insured employer providing ~~worker's~~ workers'
12 compensation benefits to reimburse a person for costs associated
13 with the use of medical marijuana; or

14 3. ~~Prevent~~ Limit an ~~employer from having~~ employer's ability to
15 implement and enforce written drug and alcohol testing policies
16 ~~regarding drug testing and impairment,~~ including zero-tolerance
17 policies, that prohibit the use of marijuana in accordance with the
18 Oklahoma Standards for Workplace Drug and Alcohol Testing Act,
19 Section 551 et seq. of Title 40 of the Oklahoma Statutes.

20 J. Any applicant or employee aggrieved by a willful violation
21 of this section shall have, as his or her exclusive remedy, the same
22 remedies as provided for in the Oklahoma Standards for Workplace
23 Drug and Alcohol Testing Act set forth in Section 563 of Title 40 of
24 the Oklahoma Statutes.

1 K. As used in this section:

2 1. "Safety-sensitive position" means any ~~job that includes~~
3 ~~tasks or duties that the employer reasonably believes could affect~~
4 ~~the safety and health of~~ position in which the employee ~~performing~~
5 ~~the task or others including, but not limited to, any~~ performs one
6 or more of the following duties, including but not limited to:

- 7 a. the handling, packaging, processing, storage, disposal
8 or transport of hazardous materials,
- 9 b. the operation of a motor vehicle, other vehicle,
10 equipment, machinery or power tools,
- 11 c. repairing, maintaining or monitoring the performance
12 or operation of any equipment, machinery or
13 manufacturing process, the malfunction or disruption
14 of which could result in injury or property damage,
- 15 d. performing firefighting duties,
- 16 e. the operation, maintenance or oversight of critical
17 services and infrastructure including, but not limited
18 to, electric, gas, and water utilities, power
19 generation or distribution,
- 20 f. the extraction, compression, processing,
21 manufacturing, handling, packaging, storage, disposal,
22 treatment or transport of potentially volatile,
23 flammable, combustible materials, elements, chemicals
24 or any other highly regulated component,

1 g. dispensing pharmaceuticals,

2 h. carrying a firearm, or

3 i. direct patient care or direct child care; and

4 2. A "positive test for marijuana components or metabolites"
5 means a result that is at or above the cutoff concentration level
6 established by the United States Department of Transportation or
7 Oklahoma law regarding being under the influence, whichever is
8 lower.

9 L. All smokable, vaporized, vapable and e-cigarette medical
10 marijuana product inhaled through vaporization or smoked by a
11 medical marijuana licensee are subject to the same restrictions for
12 tobacco under Section 1-1521 of ~~Title 63 of the Oklahoma Statutes~~
13 this title, commonly referred to as the "Smoking in Public Places
14 and Indoor Workplaces Act".

15 SECTION 2. This act shall become effective November 1, 2026.

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